

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Case No.: 22-23

MARINE TRANSPORT LOGISTICS, INC

Complainant

vs.

CMA CGM S.A.

Respondent

**MOTION FOR RECONSIDERATION
OR TO REOPEN DISCOVERY**

On October 30, 2023, the Commission, specifically *Commissioner* VEKICH, stated in connection to CMA’s misconduct on the above-captioned matter: “Although the ALJ did not impose sanctions against the Respondent, I believe doing so may have been warranted in this proceeding...Litigants before the Commission are entitled to discovery to prove their allegations...” (*See* Docket Entry #35 at p. 15-16).

It is being submitted that perhaps if such sanctions were imposed, MTL’s rights in these proceedings would not have been prejudiced as described below in support of MTL’s instant motion for reconsideration or reopening of discovery.

On January 31, 2024, the *Chief Administrative Law Judge* Erin M. WIRTH, noted in her Order on Motions to Compel: “No further motions may be filed.” (*See* Docket Entry #48, at p. 9).

CMA ignored this Order and filed their motion for reconsideration on February 14, 2016. Judge WIRTH issued her Decision as to such on February 27, 2024, where she stated in relation to the 2022 complaints that CMA was required to produce to MTL: “This discovery should be

provided as soon as it is available... No new discovery requests may be served” (*See* Docket Entry #52, at p. 2).

CMA ignored this Order too, especially the part that required CMA to produce this evidence “as soon as possible” and produced over 20,000 on the last and final date of discovery on April 16, 2024, knowing that MTL would not have enough time to serve any follow ups; therefore, I would respectfully argue that it was CMA who engaged in tactical “sandbagging” in this case, not MTL.

The Order on Respondent’s Motion to Strike (served on October 30, 2024) also says (with respect to the 20,000 plus documents that CMA served on MTL on the last day of discovery) that “MTL failed to move to extend the applicable deadlines...” I respectfully submit that in light of the aforementioned Orders by Judge WIRTH, any such motion would be in violation as the January 31, 2024 Order said: “No further motions may be filed”, and the February 27, 2024 Order indicated that there would not be any extensions to discovery.

There is a reason why these 20,000 plus documents were served on the last day of discovery on April 16, 2024 (as mentioned above in violation of the February 27, 2024 Order, where it was stated in relation to the 2022 complaints that CMA was required to produce to MTL: “This discovery should be provided as soon as it is available...), and in violation of CMA’s own promise to the Commission that these documents would be produced on a rolling basis. (*See* Docket Entry #47 at p. 2, footnote 2). As noted in the opening brief, from the documents that were able to be reviewed, some go directly to the elements that MTL is required to prove in this case to establish a violation of the Shipping Act.

As a result of the foregoing, it is respectfully being requested that discovery should be reopened to allow MTL to make follow up requests for documents in connection to these 20,000

plus documents that were produced on the last day of discovery in violation of the above-referenced Orders.

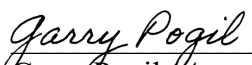
If discovery is not reopened, then it is respectfully being submitted that as requested in the opening brief, a negative inference must be taken against CMA and the instant motion for reconsideration should be granted as CMA was not prejudiced at all from the additional evidence and arguments (certainly they have not been prejudiced, not even remotely, to the extent that MTL has been prejudiced, given CMA's misconduct as delineated above), especially when there is a remedy available to allow CMA to file a sur-reply.

As is stated in the opposition to the motion to strike, There is absolutely no prejudice to CMA as these two exhibits at issue were in direct response to what CMA raised in their opposition and based on the documents previously provided and documents in CMA's possession. Furthermore, these documents (namely the profit concerning the two clients that MTL lost) could only be compiled and provided personally by Alla Solovyeva who had undergone major surgery on May 22nd with intensive treatment leading up to such. Medical proof of this can be provided for *in camera* review.

The Administrative Law Judge has a lot of discretion in this area of reconsideration before issuance of the Initial Decision. (*See Tractors and Farm Equipment, Ltd v. Waterman Steamship Corp.*, 25 F.M.C. 375, 377 (FMC 1982).

October 31, 2024

Respectfully,


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